6. **General rule.** — It will be collected from the preceding cases that portions provided for children have this peculiar quality, that whether made payable at a certain age or not, they are so far contingent as not to be raisable, but to sink into the land, where the children do not live to want their portions — that is, where the children being sons do not attain twenty-one, or being daughters do not attain that age or marry; but that on the other hand portions are so far considered vested as to carry with them such a rate of interest or such allowance as the Court may deem necessary for the reasonable maintenance of the children.

7. **Costs.** — As regards the *costs* of raising portions the general rule as to charges applies, that is, the costs must be thrown on the estate, and the portions bear no part of them (*a*), and of course under the head of costs will be included all charges and expenses properly incurred.

## SECTION III.

### AT WHAT PERIOD THE PORTIONS ARE RAISABLE.

1. **Portions out of reversions.** — We have next to inquire at what *period* the portions are to be raised, and upon this subject the great contest has been whether they shall or not be raised while the security created for the purpose * is still *reversionary*. The cases are unusually nu- [*413] merous and extremely conflicting, and the only result to be obtained is that the question must be decided by the "penning of the trust," or in other words, that if the instrument be unequivocal in itself as to the actual intention of the parties, the Court must carry out the intention whatever may be the consequential inconvenience. A sale or mortgage must necessarily be made at a disadvantage when the security is reversionary, but if the meaning be clear it must be done. We cannot better explain the principles by which the Court is now regulated, than by a statement of the two leading authorities.

(*a*) Armstrong *v.* Armstrong, 18 L. R. Eq. 541; Michell *v.* Michell, 4 Beav. 549; Trafford *v.* Ashton, 1 P. W. 415.